REPORTABLE (42)

(1) FIRSTMILE APARTMENTS (LIVINGSTONE AVENUE) PRIVATE LIMITED (2) ROBIN TENDAI VELA (3) GAUDENCIA RUFARO VELA
v
(1) AL SHAMS GLOBAL LIMITED (2) MINISTER OF JUSTICE, LEGAL & PARLIAMENTARY AFFAIRS (3) JUDICIAL SERVICE COMMISSION

SUPREME COURT OF ZIMBABWE
HARARE: 10 MARCH 2026 & 17 JULY 2026

E. Mubaiwa, for the applicants

L. Madhuku and *S. Musapatika*, for the first respondent

No appearance for the second and third respondents

IN CHAMBERS

MAFUSIRE AJA:

[1] This is a hybrid application. It is made in chambers. As its foundation, reference is made to multiple legal provisions, including the Constitution. According to the citation and the founding affidavit, the application is for:

i condonation and an extension of time within which to reinstate the civil appeal in SC 1030/25;

ii condonation and extension of time within which to comply with r 44 (2) of the Supreme Court Rules, 2025 (S I 47 of 2025)[1], ("the Rules");

iii reinstatement on the roll of the appeal in SC 1030/25 aforesaid;

[1] Which, when read together with r 45, requires that a notice of appeal be filed and served on the Registrar of this Court and the Registrar of the High Court within fifteen [15] days of the date of the judgment appealed against.

iv condonation and extension of time in terms of r 50 (3) of the Rules[2], alternatively r 4, or alternatively s 176 of the Constitution of Zimbabwe[3];

v reinstatement of the appeal in terms of r 76 (2) of the Rules[4];

vi reinstatement of the appeal and an application for condonation and extension of time to serve the appeal on the Registrar of the High Court.

[2] Plainly, this drag-net approach compromises concision and focus. With everything thrown in, the Court is left to pick, choose and apply what may be relevant.

BACKGROUND FACTS

[3] In the court *a quo*, the first respondent applied for a provisional sentence against the applicants, jointly and severally. The backbone of those proceedings was, among other things, an acknowledgement of debt by the first applicant in favour of the first respondent. The other applicants were sued as guarantors.

[4] It has not been explained why the second and third respondents have been cited in the present proceedings. They are the Minister of Justice, Legal and Parliamentary Affairs and the Judicial Service Commission respectively. However, this is of no moment in this particular matter.

[5] The applicants defended the provisional sentence summons in the court *a quo*. Part of their defence was that the parties had reached a compromise subsequently to the signing of the acknowledgement of debt and the guarantees and that, as such, they no longer owed the first respondent the amounts claimed, either in part or at all.

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[2] Which prescribes the requirements for an application for condonation for non-compliance with the Rules.
[3] Which provides for the inherent powers of the Constitutional Court, the Supreme Court and the High Court, among other things, to regulate their own processes.
[4] Which prescribes a period of fifteen [15] days for an application for reinstatement of an appeal where the Registrar has given notification that an appeal is deemed to have lapsed; or regarded as abandoned; or deemed to have been dismissed.

[6] The bedrock of the applicants' defence *a quo* was that the provisional sentence procedure is unconstitutional. Pursuant to that position, the applicants proceeded to file a parallel application in the court *a quo* for referral of the supposedly constitutional point to the Constitutional Court. Their argument was basically that r 4 of the High Court of Zimbabwe Rules, 2021, which governs the provisional sentence procedure, is unconstitutional in that it purports to limit a litigant's right to a fair trial by empowering the granting of a judgment summarily even in instances were *viva voce* evidence could be led.

[7] Both the provisional sentence matter and the application for referral were consolidated. They were heard by a single judge in the Commercial Court. The request for referral was dismissed with costs. The court *a quo* determined that it was frivolous and vexatious because a provisional sentence procedure has never been unconstitutional. Costs were awarded against the applicants on the ordinary scale.

[8] The applicants were aggrieved. On 12 December 2025 they filed a notice of appeal under SC 1030/25. However, they neglected to serve a copy of the appeal on the Registrar of the Commercial Court. This was a breach of r 44 (2) of the Supreme Court Rules, 2025.

[9] The appeal under SC 1030/25 was deemed abandoned. Inevitably, and in due course, the Registrar of this Court dismissed it. That was on 20 January 2026. Following that, the applicants, under SC 127/26, filed their first application for condonation and extension of time. This was later followed by the present application. The first application was subsequently withdrawn. The applicants say the withdrawal was prompted by some errors that they noticed. One such error was that the founding affidavit in the court record had neither been signed nor commissioned.

THE PRESENT APPLICATION

[10] The applicants' notice of appeal in SC 1030/25 was filed on 12 December 2025. They served it on the Registrar of the General Division of the court *a quo*. They did not serve on the Registrar of the Commercial Court. Of course, the Commercial Court is a division of the High Court. The term 'Commercial Court' is used colloquially.

[11] Service of the applicants' notice of appeal aforesaid on the Registrar of the Commercial Court was due by 29 December 2025. On 16 January 2026 this Registrar notified the applicants that she had dismissed the appeal for having neglected to serve a copy on her. The applicants allege that the period of delay was 34 days. They admit it is significant. However, they argue that it is not beyond excuse by the Court.

[12] The applicants further argue that even though they might not have served their notice of appeal on the Registrar of the Commercial Court, the fact that service had been made timeously on the Registrar of the General Division meant that they had been compliant with the rules.

[13] The foundation of the applicant's argument above is that, of the two proceedings that were later consolidated, the provisional sentence summons was the one issued in the Commercial Court while the application for referral to the Constitutional Court had been issued in the General Division. However, it was the Commercial Court which determined the consolidated case. It was also the judgment of the Commercial Court which is being appealed against.

[14] The applicants maintain that the dismissal of their appeal was "awkwardly" pronounced by the Registrar of the Commercial Court. They say she had no jurisdiction to determine the fate of an appeal filed at the Supreme Court. They conclude that all she could do

would be to bring the non-compliance with the rules to the attention of the Registrar of this Court. Nonetheless, the Registrar of this Court eventually pronounced the dismissal herself.

[15] The applicant's erstwhile legal practitioner and deponent to the founding affidavit purports to bolster the applicants' case by taking all the blame. He states that it was his oversight that brought everyone where they all are now. He had assumed that serving the notice of appeal on the Registrar of the General Division would suffice. However, he admits he was mistaken, especially given that both matters had been consolidated and referred to the Commercial Court which is the one that issued the judgment now being appealed.

[16] So in general, the applicants seek condonation for the late filing of their appeal and an extension of time within which to do so. The basis, distilled, is that it was their legal practitioner's oversight in serving the notice of appeal on the wrong Registry and that, at any rate, that mistake is simply one of technicality and not of substance, given that the registry at which the notice was served was still a registry in the court *a quo*.

[17] On the prospects of success, the applicants submit that the court *a quo* erred in exercising jurisdiction that it did not have. It held irregularly that the provisional sentence procedure was constitutional. Yet that was the very issue to be referred to the Constitutional Court.

[18] The applicants further argue that other jurisdictions like South Africa have sought to align the provisional sentence procedure with such of the constitutional provisions as are meant to fully protect the right of access to the courts. Provisional sentence allegedly purports to restrict this right.

[19] The applicants raised other peripheral arguments. One of them was that the court *a quo* did not determine live issues before it, particularly its alleged failure to make mention of a certain South African judgment that the applicants had relied on in their application. The other point was that the court *a quo* erred in granting costs without justification when what was before it was constitutional litigation in which no costs of suit are ordinarily ordered. They argue that, for that reason, the order of costs was issued arbitrarily.

[20] The application is hotly contested by the first respondent. It has raised two preliminary objections. The first attacks the general resolution allegedly granting the deponent to the founding affidavit the authority to bring the application. That deponent is the applicant's former legal practitioner of record whose mandate and that of his firm had expressly been terminated by the applicants even prior to the launch of the first application.

[21] The resolution in question was purportedly by the first applicant's board of directors on 6 February 2026. It purported to grant the deponent, or any legal practitioner of the applicant's erstwhile firm, the authority to represent the first applicant "**in any and all the legal proceedings, and undertake any and all actions necessary including filing affidavits and representing the company with full authority.**"

[22] The first respondent fastens to the date of the resolution, namely, 6 February 2026. It points out that following the withdrawal of the mandate, the applicants' former legal practitioner and his firm had duly renounced agency on behalf of the applicants. That was on 13 February 2026. With that, the life of the resolution had extinguished. The present application was filed on 17 February 2026. Accordingly, neither the deponent nor his firm had the power or authority to bring this application.

[23] Next, the first applicant draws attention to the above highlighted words in the impugned resolution. It argues that the resolution is a general one. It does not specify the terms of what the board was authorizing the deponent to do.

[24] The second preliminary objection by the first respondent is in respect of the third applicant and her purported supporting affidavit. The third applicant was alleged to be, among other things, a co-director in the first applicant.

[25] The first respondent charges that the third applicant's so-called supporting affidavit is a forgery. Contrary to the impression given on the signing page of that affidavit, namely that it was signed by the third applicant at Harare on 16 February 2026 before a legal practitioner and commissioner of oaths, one Ayanda S. Kalume, LLB (UNISA), nothing of the sort ever happened. At all relevant times, including the 16th of February 2026, the third applicant was not in Harare but in the United Kingdom.

[26] On the merits, the first respondent accuses the applicant of not taking the matter seriously. On no account can the failure to serve the notice of appeal on the Registrar of the Commercial Court be justified or excused. The two matters in question had been consolidated and referred to the Commercial Court by consent. The consolidated matter was argued in the Commercial Court. The judgment sought to be appealed against was that of the Commercial Court.

[27] The first respondent further accuses the applicants of a lack of genuineness. In the one breath, they seek to be condoned for failure to comply with the rules. Yet in the next, they blame the Registrar of the Commercial Court for "awkwardly" flagging the non-compliance and purporting to dismiss the appeal herself.

[28] On prospects of success, the first respondent argues that the application for referral was starkly without merit, frivolous and vexatious. It argues that the court *a quo* could not have determined the application before it without quizzing the constitutionality of r 14 of the High Court Rules which governs provisional sentence proceedings. The question of jurisdiction was consequential.

[29] The first respondent dismisses the applicant's argument on the foreign judgment on provisional sentence, arguing that it was not binding on the court *a quo* especially given that it was a 2011 judgment whereas r 14 aforesaid is a 2021 provision.

[30] On the issue of costs, the first respondent argues that they are granted or refused by the court entirely at its discretion. In the proceedings in question, the court *a quo*, had determined that there was an abuse of the court process. The court's discretion was applied against that background. At any rate, the entirety of the litigation stemmed from firm agreements in terms of which, among other things, the applicants had undertaken to pay all the first respondent's costs on the legal practitioner and client scale.

[31] The first respondent has raised other supplementary arguments, such as the immense prejudice it allegedly continues to suffer by reason of the inordinate delays allegedly orchestrated by the applicants, and the fact that the dispute between the parties, being one of a commercial nature, should allegedly have been determined within no more than six months, yet the matter has been pending for the last two years, thereby rendering nugatory summary procedures such as provisional sentence.

[32] To cap it all, the first respondent prays for the dismissal of the application with costs on the attorney and client scale and *de bonis propriis* against the deponent to the founding affidavit, the applicant's erstwhile legal practitioner of record.

PROCEEDINGS IN CHAMBERS

[33] During the hearing, the issue of the third applicant's affidavit being forged became topical. It boomeranged against the applicants. It seemed to have caught someone in *flagrante delicto*.

[34] Apparently, the third applicant's affidavit was indeed forged. Mr *Mubaiwa*, counsel for the applicant, all but conceded it. He purported to disown both the affidavit and the third applicant. His position was that he had no instructions to act for the third respondent and that his brief was to represent the first and second applicants only. However, there was no formal renunciation of agency by any of the legal practitioners representing the applicants. I did not think that such a serious issue could simply be wished away like that.

[35] I pressed counsel for the applicants to shed some light as to who had been responsible for committing such crass forgery. He said he had no answer.

[36] Mr *Madhuku*, for the first respondent, raised the stakes higher. He challenged the propriety of the applicants even persisting with the very application when evidently, they were coming to court with dirty hands. He asserted that it must have been one or other of the applicants that had caused the offensive document to be filed with the court. He ruled out the third applicant because she was the one who had flagged the issue. He ruled out the first applicant. It was just a company, not a human being.

[37] The issue of the third applicant' affidavit being fake had been raised by the first respondent in its notice of opposition. With counsel for the applicants unable to shed light on how it had come about, attention focused on the applicants' answering affidavits. There were three of them. The first was by the applicants' erstwhile legal practitioner

himself, the same deponent to the founding affidavit. The second was by the second applicant. The third and last was by the applicants' current legal practitioner of record.

[38] Regrettably, all the answering affidavits disclose an unfortunate state of affairs. The applicants' erstwhile legal practitioner tersely dissociates himself from the fake affidavit. He professes complete ignorance on how it might have come about, his effort having been confined to merely explaining his role in the serving of the notice of appeal on the wrong registry.

[39] After complaining about allegedly being dragged into the debacle concerning the third applicant's affidavit, the legal practitioner ends by proffering advice on how the issue could be resolved. He says that if there was any dishonesty, the remedy is just to punish by an adverse order of costs.

[40] The second answering affidavit by the second applicant completely avoids the issue of the fake affidavit.

[41] It is the third answering affidavit by the applicants' current legal practitioner of record that, in strong and threatening language, purports to shed some light. Unfortunately, this affidavit conceals more than it reveals. The complaint about the fake affidavit is dismissed as mudslinging. The legal practitioner explains that he is the one that prepared the third applicant's draft affidavit on instructions and transmitted it for signing. Upon its return, he checked and satisfied himself that it had been signed and properly commissioned. He then caused it to be filed of record. However, the legal practitioner, all but admits that the offensive document is a serious misrepresentation.

[42] It is of concern that the legal practitioner does not explain who he was instructed by to prepare the draft affidavit. Certainly, it could not have been by the first applicant, a

company, or by the third applicant who is completely dissociating herself from the case. The legal practitioner also does not explain who he transmitted the draft affidavit to and who returned it back to him for filing.

[43] Instead of attending to these very basic issues, the legal practitioner incredibly rebukes the first applicant and its legal practitioners. Among other things, he threatens costs on a punitive scale should they dare continue with their highly defamatory allegations. He expresses regret for what he brands as a failure by the first respondent's legal practitioner to verify facts with him before placing such an issue on record which impairs the dignity of the legal profession and the collegiality expected amongst legal practitioners.

[44] I was quite surprised by the tone in the legal practitioner's affidavit and his whole attitude to the issue.

ISSUES FOR DETERMINATION

[45] The preliminary points raised by the first respondent are quite serious. They necessarily detain the court. They are not frivolous. They either delay or debar the determination of this application on its merits.

[46] The third applicant is no longer a contestant. The dispute remains as between the first and second applicants, on the one side, and the first respondent on the other.

[47] On the preliminary points, the first issue for determination is whether or not this hybrid application is properly before the court. This question arises because of the challenge on the authority and capacity of the applicants' former legal practitioner to bring the application by deposing to the founding affidavit.

[48] Depending on the answer to the first issue aforesaid, the second issue is whether or not the dirty hands principle applies to this matter in such a way as to non-suit the first and second applicants.

[49] Again depending on the answer or answers to the questions above, the issue on the merits is whether or not the requirements for condonation and extension of time within which to file an appeal have been met.

Whether or not the hybrid application is properly before the court

[50] It will be recalled that the first respondent's objection was that the present application is improperly before the court because there was no proper board resolution by the first applicant authorising the deponent to the founding affidavit to act.

[51] The applicants must have appreciated the force of this objection. In their answering affidavits, but without addressing the alleged irregularity at all, the applicants simply attach another resolution which purported to grant the authority *post facto* by ratification. It is dated 26 February 2026. As mentioned earlier, this application was issued on 17 February 2026.

[52] After some recitals, the material portion of the ratifying resolution reads as follows:

> "1. The Company (namely, first applicant) hereby ratifies the institution of the above proceedings in its name and the deposition by (applicants' erstwhile legal practitioner) of all affidavits in its name for purposes of obtaining the relief of condonation and extension of time within which to seek reinstatement of the appeal in SC 1030/25 and reinstatement of the appeal, and
>
> 2. The Company further ratifies all acts undertaken in its name under the agency of Messrs (applicants' current legal practitioners of record) in the prosecution of the application above."

[53] It has been submitted on behalf of the applicants that with the ratifying resolution, the first respondent's objection falls away. It is further submitted that when the question of

authority arises, it should simply be produced. The applicants say it has been produced. The ratification is sufficient.

[54] In rebuttal, Mr *Madhuku* submitted that a board must be aware of proceedings before they are even instituted. It cannot ratify process which was instituted on its behalf without its knowledge or authority.

THE LAW

[55] A company is a juristic person. In legal proceedings before a court, it has to be represented by a duly authorised natural person. Such authority must be presented and the court must be satisfied, among other things, as to its adequacy. In *Madzivire & Ors* v *Zvarivadza & Ors* 2006 (1) ZLR 514 (S), at p 516B – C, this Court stated as follows:

> "…a company, being a separate legal *persona* from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. This is a well established legal principle, which the courts cannot ignore. It does not depend on the pleadings by either party."

[56] It was necessary for the applicants to satisfy, by true evidence, that the first applicant was aware of the launch of the application and that the deponent to the founding affidavit had the requisite authority: see *Dube* v *Public Service Medical Aid Society & Anor* 2019 (3) ZLR 589 (S). If such authority is challenged, it must be produced. This is a textbook case. No evidence of such knowledge or authority has been produced.

[57] In the *Dube* case above, it was stated as follows, at p 598, para (38):

> "A person who represents a legal entity, when challenged, must show that he is duly authorised to represent the entity. … … He must produce a resolution of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that the need to produce such proof is necessary only in those cases where the authority of the deponent is put in issue. This represents the current state of the law in this country."

[58] I consider that the purported ratifying resolution discussed above could not possibly stand in the place of such evidence or authority as is required in matters like these. At the critical time when this application was launched, namely, 17 February 2026, there evidently was no such authority. The mandate of both the applicants' former legal practitioner and his law firm had been expressly terminated by the applicants on 13 February 2026. What is more, they had gone on to formally renounce agency on the same day. A renunciation of agency is a formal notice to the court, to the litigants and to the world at large that the attorney of record has ceased acting for a party. The issuing of court proceedings after such, is an action 360^0 irregular.

[59] The first respondent argues that a *persona ficta* (fictional person) cannot ratify legal proceedings that were instituted without authority. I agree.

DISPOSITION

[60] I hold that the present application was irregularly filed. It is improperly before the court. It is liable to be struck off the roll.

[61] Because of my decision above, I need not go further to decide the rest of the issues, including the applicability of the dirty hands principle, even despite the huge temptation to do so.

[62] Costs must necessarily follow the event. In the hearing, the first respondent dropped the demand for costs *de bonis propriis*, but insisted on them being paid on the higher scale of attorney and client.

[63] However, given that the matter has turned on the issue of the lack of authority only, I consider that there has been no such errant conduct as to warrant a penal order of costs.

[64] In the result, the following order is hereby made.

"The application be and is hereby stuck off the roll with costs."

Chambati, Mataka & Makonese, applicants' legal practitioners.

Lovemore Madhuku Lawyers, 1st respondent's legal practitioners.